

The Orissa Staff Selection Commission Rules, 1993

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State of Odisha - Act

The Orissa Staff Selection Commission Rules, 1993

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The Orissa Staff Selection Commission Rules, 1993

Rule THE-ORISSA-STAFF-SELECTION-COMMISSION-RULES-1993 of 1993

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The Orissa Staff Selection Commission Rules, 1993

Published vide Notification Orissa Gazette Extraordinary No. 1610/13-12-1993 Notification No. 25673, dated 23.11.1993

No. 25673-2R/1-60/93-Gen. - In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India, the Governor of Orissa is pleased to make the following rules to regulate the method of recruitment to all the Class-III Civil Posts and Services under the State Government which form State cadre, namely :

1.

Short title and commencement.

(1)

These rules may be called the Orissa [Staff Selection Commission]

[Substituted vide Orissa Gazette No. 26 Part III - A, dated 26.6.1998.]

Rules, 1993.

(2)

They shall come into force on the date of their publication in the Orissa Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires-

(a)

"Collector" means the Collector of the District;

(b)

"Commission" means the [Staff Selection Commission]

[Substituted vide Orissa Gazette No. 26 Part III - A, dated 26.6.1998.]

constituted under Rule 3 of these rules;

(c)

"Department of Government" means the Administrative Department of Government;

(d)

"District Superintendent" means the Additional District Magistrate in charge of the District Establishment of a district;

(e)

"Government" means the State Government of Orissa;

(f)

"Heads of Department" means the Heads of Department as specified in Appendix-III appended to the Orissa Service Code;

(g)

"Secretary" means the [Secretary of the Commission]

[Substituted vide Orissa Gazette Extraordinary No. 1018 dated 16.7.1999.]

;

(h)

"Scheduled Castes and Scheduled Tribes" means the Castes and Tribes as notified by the President of India under Articles 341 and 342 of the Constitution of India respectively from time to time;

(i)

"State" means the State of Orissa;

(j)

"Superintendent" means the Sub-Collector of a Revenue Sub-division;

(k)

"Year" means a calendar year.

3.

Constitution of the [Staff Selection Commission]

[Substituted vide Orissa Gazette No. 26 Part III - A, dated 26.6.1998.]

and its function.

(1)

There shall be a [Staff Selection Commission]

[Substituted vide Orissa Gazette No. 26 Part III - A, dated 26.6.1998.]

in the State.

(2)

[The Headquarters of the Commission shall be located at such places as may be determined by the Government from time to time.]

[Substituted vide Orissa Gazette Extraordinary No. 1018 dated 16.7.1999.]

(3)

The Commission shall consist of a Chairman and a member to be appointed by Government.

(4)

There shall be a Secretary and such other staff appointed by Government to assist the Commission in its day to day functioning.

(5)

The rank of the Chairman and Member of the Commission shall be such as may be determined by the Government from time to time.

(6)

[The Commission shall function under the Administrative Control of the General Administration Department.]

[Substituted vide Orissa Gazette Extraordinary No. 1018 dated 16.7.1999.]

(7)

The Chairman of the Commission shall exercise all the administrative and financial powers vested in Heads of Department and the Secretary shall function as the Head of Office.

(8)

The Commission shall conduct the recruitment examination for all Class-III Civil Services/Posts under the State Government as mentioned in Rule 4 and ensure the declaration of the results of the said examinations.

(9)

The Commission shall formulate a set of regulations to regulate the manner for conducting recruitment examinations.

(10)

[The Chairman shall nominate expert (s) in particular discipline/ trade for each selection wherever necessary from among the State Government Officers, Professors of the Universities of the State or academicians, or Officers of Government of India or of other States or of Public Sector Undertakings whether in service or retired and from among other eminent persons having specialised knowledge in the particular discipline/trade.]

[Substituted vide Orissa Gazette Extraordinary No. 1018 dated 16.7.1999.]

(11)

The Secretary shall be responsible for carrying out the entire process of conducting the recruitment examinations including appointment of the question setters/examiners, obtaining question papers, keeping them in safe custody, ensuring the identity of the candidates, timely supply of question papers to the different centres, proper invigilation, safe custody of answer books, tabulation of marks obtained by the candidates in such examinations and publishing the results [under the supervision of the Chairman.]

[Substituted vide Orissa Gazette Extraordinary No. 1018 dated 16.7.1999.]

4.

Direct recruitment.

- The Commission shall conduct direct recruitment through competitive examination in respect of Class-III Civil Posts/Services as listed under Schedule I :

Provided that the Government may from time to time, include in the list any Services/Posts under Schedule I or exclude any Service/ Post from the said list by notification in the Official Gazette.

5.

Intimation to the Commission.

- The Department of Government/Heads of Departments shall every year in the month of January intimate the Commission indicating the number of vacancies including those anticipated in course of the year in Form-A.

6.

Advertisement of vacancies.

- On receipt of the intimation of vacancies under Rule 4 the Secretary in consultation with the Chairman shall issue advertisement in the leading Local Newspapers inviting applications from eligible candidates for appearing in the competitive recruitment examination.

Note - The application for the competitive examination may be in such form as may be decided by the Commission.

7.

Eligibility of candidate.

(1)

A candidate in order to be eligible for appearing at the competitive examination must satisfy the following conditions, namely :

(a)

He shall be a citizen of India.

(b)

He shall possess requisite qualification prescribed for the Post/Service in the recruitment rule or instruction for which examination is being conducted.

(c)

[(i) His age shall not be less than the Minimum age-limit as prescribed under Rule 52-A of the Orissa Service Code on the 1st day of January of the year in which recruitment is held, and his age shall not be more than the upper age-limit as prescribed in the Orissa Civil Service (Fixation of Upper Age-Limit) Rules, 1989.]

[Substituted vide Orissa Gazette Extraordinary No. 1018 dated 16.7.1999.]

Provided that the maximum age limit shall be relatable by five years in case of Scheduled Castes and Scheduled Tribes candidates, ten years in case of Physically Handicapped candidates, and to such extent as provided in the Orissa Ex-Servicemen (Recruitment to State Civil Services and Posts) Rules, 1985 in respect of Ex-Servicemen.

(d)

He shall be of good character.

(e)

He shall be sound health, good physique and active habits and free from organic defects of bodily infirmity.

Note - This provision shall not be applicable in case of physically handicapped candidate.

(f)

He must have passed Middle School Examination with Oriya Language subject, or have passed Matriculation or equivalent examination with Oriya as medium of examination in non-language subject, or have passed in Oriya as Language subject in the final examination of Class VII and above, or have passed a test in Oriya M.E School standard conducted by the Education Department;

(g)

He must have the required physical standard/other technical qualifications in respect of any Service/Post, if any, specified under relevant recruitment rules/instructions.

(h)

He must fulfil any other special condition as may be specified under relevant recruitment rules/instructions.

(2)

No person who has more than one spouse living shall be eligible for appearing at the competitive examination.

Note - If the Competitive examination could not be conducted by the Commission in any particular year and the likely vacancies for that year are combined with the likely vacancies of the subsequent year, the candidates eligible to appear at the examination for the year for which examination could not be held shall be entitled to appear at the examination held in the subsequent year.

8.

Admission of the candidate to examination.

- The decision of the Chairman as to the eligibility or otherwise of a candidate for admission to any examination shall be final.

9.

Preference for the posts by the candidate.

- A candidate is required to indicate the order of preference for the post for which he intends to appear at the combined competitive examination and the service in which he wants to be appointed, if selected, in his application form, in case the Commission decides to conduct an examination for common category of posts.

10.

Examination fees and remuneration to examiners.

(1)

No application for admission to any examination shall be considered unless it is accompanied by a Treasury challan showing payment in the Government Treasury, the examination fees as specified in the advertisement ;

Provided that the candidates belonging to Scheduled Castes and Scheduled Tribes shall not pay any such examination fee.

(2)

No claim for refund of the fees shall be entertained in any circumstances.

(3)

The Commission shall decide the rates of remuneration payable to different examiners Staff/Officers/Invigilators

engaged in connection with the examination.

11.

Competitive Examination.

(1)

Competitive Examination shall be held at a centre or centres to be announced by the Commission considering the number of the candidates appearing for the said examination.

(2)

The Commission may fix up such centres at district or Sub divisional headquarters, if necessary, in consultation with the Collector. The date, time and place for the examination shall be intimated to the candidates at least one month before the examination [and the same shall be published sufficiently ahead in two leading local newspapers]

[Added vide Orissa Gazette Extraordinary No. 1018 dated 16.7.1999.]

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12.

Arrangement for and conduct of the examination.

- The District Superintendent or the Superintendent, as the case may be, shall conduct the written examination under the guidance and direction of the Commission.

(2)

The District Superintendent shall in consultation with the Commission appoint as many as Deputy Superintendents from among the Gazatted Officers under his jurisdiction in order to ensure smooth conduct of the said written examination in the district.

(3)

The District Superintendent and the Superintendent shall have power for requisitioning the local educational buildings [or the buildings belonging to the State Government/Public Sector Undertakings or the like]

[Inserted vide Orissa Gazette Extraordinary No. 1018 dated 16.7.1999.]

for the purpose of conducting the examination.

(4)

The examination shall be held preferably on any public holidays so that the education of the students does not suffer.

(5)

The District Superintendent shall have power to appoint required number of invigilators from among the gazetted or responsible non-gazetted Officers under his jurisdiction.

(6)

The District Superintendent or the Superintendent, as the case may be, shall make necessary sitting arrangements for the candidates admitted for the examination.

(7)

The District Superintendent/Superintendent shall have the power to recommend any penalty under Rule 18 of these Rules to the Commission and orders of the Commission in this respect shall be final.

(8)

The District Superintendent/Superintendent shall ensure safe custody and despatch of all confidential matter relating to the examination.

(9)

Whenever necessary the District Superintendent/Superintendent may seek advice of the Collector and the Collector may give instructions in the interest of impartiality and fair play in conducting the examination.

(10)

Setting of questions and evaluation of answer papers shall be done centrally.

(11)

Invigilators and Supervisors of the written examination shall be appointed from outside the Sub-divisions as far as practicable.

13.

Plan of Examination.

- [The Commission shall conduct the recruitment examination as per the syllabus and the pattern of examination as may be decided by them in consultation with the concerned Administrative Department of the State Government. However,

while fixing up the marks for the oral test/interview/personality test, the commission and Administrative Department shall ensure that the marks allotted to such oral test/interview/ personality test, shall not exceed 12.2% of the total marks allotted.]

[Substituted vide Orissa Gazette Extraordinary No. 1018 dated 16.7.1999]

14.

Selection of candidates.

- The following guidelines shall be followed in conducting recruitment to various posts and services by the Commission, namely:

(i)

There shall be a written test for every category of recruitment;

(ii)

In addition to the written test, viva voce test may be conducted by the Commission if it is satisfied that such test is necessary to select candidates for the post for which examination is held;

(iii)

Method of central evaluation of answer papers shall be such as may be decided by the Commission:

(iv)

If two or more candidates have obtained equal marks in the aggregate, the order of merit shall be determined in accordance with the marks secured by such candidates in their respective academic career and if the marks thus secured are equal then the merit shall be decided according to their seniority in age;

(v)

Any other standard and syllabus prescribed by the Government, if any, for any particular Post/Service from time to time shall be adopted.

15.

Select list and its validity.

(1)

The Commission shall prepare the select list of the successful candidates in order of merit on the basis of the recruitment examination which shall be equal to the number of vacancies for which requisitions are received.

(2)

The select list shall be published in the notice board of the Commission [and in two leading local newspapers]

[Added vide Orissa Gazette Extraordinary No. 1018 dated 16.7.1999]

in the form of Notification under intimation to the appropriate appointing authority, if any, specified in the respective recruitment rules.

(3)

The select list for each recruitment examination shall be valid for one year from the date of its publication or till the publication of the result of the next recruitment examination whichever is earlier.

16.

Allotment of Candidates and seniority.

(1)

The Commission shall allot candidates in the order in which their names appear in the select list to Departments of Government and Heads of Departments as per their vacancy position intimated under Rule 4. At the time of allotment due consideration shall be given to the preference indicated by the candidates in their applications. But the Commission reserves the right to assign any candidates to any Service/Post with due regard to his merit. Formal orders of appointment shall be issued to such allotted candidates by the appointing authorities concerned.

(2)

The relative seniority to a candidate appointed to a post in a particular grade or service by the appointing authority in a particular year shall be determined with reference to his position in the select list from which he is appointed.

(3)

In case of failure of any selected candidate to join in the post, the appointing authority may request the Commission for furnishing a supplementary list of the successful candidates and in that case the Commission shall furnish a supplementary list of successful candidates.

17.

Relaxation.

- Where the Government are of opinion that it is necessary or expedient to do so, they may by order and for reasons to be recorded in writing, relax any of the provisions of the rules in respect of any class or category of persons in public interest.

18.

Penalty.

- A candidate who is or has been declared by the Commission to be guilty of-

- (i) obtaining support for his candidature by any means; or
 - (ii) impersonation; or
 - (iii) procuring impersonation by any person; or
 - (iv) submitting fabricated documents, or documents which have been tampered with; or
 - (v) making statements which are incorrect or false or suppressing material information; or
 - (vi) resorting to any other irregular or improper means in connection with his candidature for the examination; or
 - (vii) adopting unfair means during the examination; or
 - (viii) writing obscene language or pronographic matter, in the scripts; or
 - (ix) misbehaving with the fellow examiners or the invigilators in any manner in the examination hall; or
 - (x) harassing or causing bodily harm to the staff employed/engaged by the Commission for the conduct of the examination; or
 - (xi) violating any of the instructions contained in the admission certificates; or
 - (xii) attempting to commit or, as the case may be, abetting the Commission of all or any of the acts specified in the foregoing clauses shall be liable-
- (a) to be disqualified by the Commission from the examination for which he is candidate;
 - (b) to be debarred, either permanently or for a specified period-
- (i) by the Commission, from appearing in any examination or selection held by them; or
 - (ii) by the State Government, from entering to any employment under them; or
 - (c) if he is already in service under Government to disciplinary action under the appropriate rules :
- Provided that no penalty under this rule shall be imposed except after-
- (i) giving the candidate an opportunity of making such representation to the Commission or Government, as the case may be, in writing as he may wish to make in that behalf ; and
 - (ii) taking into consideration the representation, if any, submitted by the candidate within the period allowed to him by the Commission or the Government, as the case may be.

19.

Rules not applicable to staff of certain Offices.

- These rules shall not apply to recruitment of the Staff of the High Court, the District and Subordinate Courts, the officers of Orissa Public Service Commission, Orissa Legislative Assembly and Governor's Secretariat.

20.

Overriding effect.

- Save as otherwise provided, the provisions of these rules shall have overriding effect on the provisions of other recruitment rules regulating direct recruitment to the Class-III Civil Services/ Posts constituting State cadre.

21.

Interpretation.

- If any question arises relating to the interpretation of these rules, it shall be referred to Government in the General Administration Department of decision.

[Schedule-I]

[Substituted vide Orissa Gazette Extraordinary No. 969 dated 31.7.1998.]

List of Civil Post/Services

[See Rule 4]

Sl. No.

Name of the Department

Name of the Posts/Services

(1)

(2)

(3)

1.

Agriculture

1.

Junior Soil Conservation Officer

2.

Junior Horticulture Officer

2.

Commerce & Transport (Commerce)

1.

Junior Engineer (Electrical/Mechanical)

3.

Commerce & Transport (Transport)

1.

Junior M.V.I.

4.

Energy

1.

Junior Engineer

5.

Finance

1.

Auditor Local Fund

2.

Small Savings Officer (Senior Grade)

3.

Inspector of Commercial Tax

4.

Accountant

5.

Auditor (Common Cadre)

6.

Fisheries and Animal Resources Development

1.

Junior Veterinary Officer

2.

Statistical Investigator

3.

Statistical Assistant

4.

Agricultural Overseer

7.

Forest and Environment

1.

Ranger

8.

Food, Supply and Consumer Welfare

1.

Inspector of Weights and Measures

2.

Assistant Analyst

9.

General Administration

1.

Junior Assistant of Heads of Departments

2.

Junior Stenographer of Heads of Department

3.

Junior Typist of Heads of Department

10.

Health and Family Welfare

1.

Artist-cum-Photographer

2.

Projectionist

11.

Home

1.

Prison Welfare officer

2.

Sub-divisional Probation Officer

3.

Aftercare Officer

4.

Sub-Inspector of Police

5.

Sergeant

6.

Laboratory Assistant

7.

Sub-Assistant Jailor

8.

Assistant Jailor

9.

Zamadar

10.

Wireless Assistant

11.

A.S.I. (Mechanical)

12.

A.S.I. (Operator)

13.

Assistant Librarian

14.

Woman S.I.

15.

Dog S.I.

16.

Reporter S.I.

17.

Steno S.I.

18.

Handwriting bureau S.I.

19.

W T.S.I.

20.

Teleprinter S.I.

21.

Photo S.I.

22.

Operator S.I.

23.

Station Officer (Fire brigade)

24.

Building S.I.

25.

Junior Typist of Secretariat

26.

Junior Stenographer of Secretariat

12.

Housing and Urban Development

1.

Junior Engineer

13.

Industry

1.

Industrial Promotion Officer

14.

Information and Public Relation

1.

Radio Inspector

2.

O.I.S. (Junior Branch)

15.
Labour and Employment
 1.
Junior Employment Officer
 2.
Rural Labour Inspector
 3.
Statistical Assistant
 4.
Assistant Labour Officer
16.
Panchayati Raj
 1.
Junior Engineer
17.
Planning and Co-ordination
 1.
Statistical Investigator
 2.
Senior Economic Investigator
 3.
Cart Grapher
18.
Revenue and Excise
 1.
Excise Sub-Inspector
 2.
Auditor
19.
Rural Development
 1.
Junior Engineer
 2.
Statistical Investigator
 3.
Statistical Assistant
20.
Steel and Mines
 1.
Assistant Geologist
 2.
Assistant Geophysicist
 3.
Senior Laboratory Assistant
 4.
Instrument Assistant
 5.
Scientific Assistant
 6.
Senior Surveyor
 - 7.

Junior Inspector of Mines

21.

Sports and Youth Services

1.

Assistant District Sports Officer

2.

Coaches

22.

Tourism and Culture

1.

Assistant Tourist Officer

2.

District Cultural Officer

23.

Handloom and Textiles

1.

Weaving Supervisor

2.

Inspector of Textiles

3.

Field Assistant Sericulture

24.

Water Resources

1.

Assistant Silt Analyst

2.

Assistant Chemist

3.

Assistant Embankment Inspector

4.

Junior Laboratory Assistant

5.

Junior Engineer

25.

Works

1.

Junior Engineer

2.

Architectural Assistant

26.

Women and Child Development

1.

Statistical Assistant.

[Schedule-II]

[Substituted vide Orissa Gazette Extraordinary No. 1018 dated 16.7.1999.]

Form-A

[See Rule 5]

1. Name of the Posts/Services

2. Number of vacancies already existing on the 1st January of the year

3. Number of vacancies, likely to occur during the year

4. Total number of vacancies (2 + 3)

5. Number of permanent vacancies
6. Number of temporary vacancies likely to continue on permanent basis
7. Number of purely temporary vacancies
8. Number of vacancies reserved for-
 - (a)
Scheduled Castes
 - (b)
Scheduled Tribes
 - (c)
Physically Handicapped
 - (d)
Ex-Servicemen
 - (e)
Sportsmen
 - (f)
Women
 - (g)
Socially and Educationally Backward Classes
9. Minimum Educational qualification for the post
10. Desirable qualification and experience
11. Age-limit for the post
12. Name of the appointing authority
13. Scale of pay of the post
14. Special Provision provided under the relevant recruitment rules or instructions, if any
15. Any other information, if any

Signature

Date]

III

[* * *]

[Deleted vide Orissa Gazette Extraordinary No. 1018 dated 16.7.1999.]

Related AI tags, queries and research notes

Translation